

Investors' Rights Agreement

Background

(A) Acme AI Limited is a private company limited by shares incorporated in Ireland (Company Registration No. 678901) whose registered office is at 3rd Floor, The Merchants Building, Sir John Rogerson's Quay, Dublin 2, D02 X576, Ireland.

(B) The Company carries on the business of developing and licensing artificial intelligence software-as-a-service solutions for enterprise customers in the European Union, United Kingdom and North America.

(C) The Shareholders wish to regulate their relationship and the management of the Company following the Series B funding round completed on 15 September 2024 in the aggregate amount of €28,500,000.

(D) The parties have agreed to enter into this Agreement on the terms set out below.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration (the receipt and sufficiency of which are hereby acknowledged), the parties agree as follows:

1. Definitions and Interpretation

1.1 "Affiliate" means any entity controlling, controlled by or under common control with a party References to "Affiliate" include, where the context permits, any successor or assignee thereof.

2.1 "Board" means the board of directors of the Company References to "Board" include, where the context permits, any successor or assignee thereof.

3.1 "Business Day" means a day when banks are open in Dublin References to "Business Day" include, where the context permits, any successor or assignee thereof.

4.1 "Completion" means completion of the Series B investment References to "Completion" include, where the context permits, any successor or assignee thereof.

5.1 "Drag-Along Notice" means a notice requiring minority shareholders to sell on the same terms as a majority sale References to "Drag-Along Notice" include, where the context permits, any successor or assignee thereof.

6.1 "Fair Market Value" means value determined by an independent valuer appointed by the Institute of Chartered Accountants in Ireland References to "Fair Market Value" include, where the context permits, any successor or assignee thereof.

7.1 "Founders" means Siobhán O'Connell and Elena Vasquez References to "Founders" include, where the context permits, any successor or assignee thereof.

8.1 "Investor Majority" means Investors holding more than 60% of Investor Shares References to "Investor Majority" include, where the context permits, any successor or assignee thereof.

9.1 "Investor Shares" means Series A Preferred, Series B Preferred and other shares issued to Investors References to "Investor Shares" include, where the context permits, any successor or assignee thereof.

10.1 "Ordinary Shares" means the ordinary shares in the capital of the Company References to "Ordinary Shares" include, where the context permits, any successor or assignee thereof.

11.1 "Reserved Matters" means matters requiring Investor Majority consent as set out in Schedule 3 References to "Reserved Matters" include, where the context permits, any successor or assignee thereof.

12.1 "Tag-Along Notice" means a notice allowing minority shareholders to participate in a majority sale References to "Tag-Along Notice" include, where the context permits, any successor or assignee thereof.

13.1 "Transfer" means any sale, assignment, charge or other disposition References to "Transfer" include, where the context permits, any successor or assignee thereof.

2. Interpretation

In this Agreement, unless the context otherwise requires: (1) headings are for convenience only and do not affect interpretation; (2) words importing the singular include the plural and vice versa; (3) references to a person include

bodies corporate, unincorporated associations and partnerships; (4) "Company" means Acme AI Limited (Company Registration No. 678901); (5) references to statutes or statutory provisions include any subordinate legislation and any modification, consolidation or re-enactment thereof; (6) references to writing include email where acknowledged by the recipient; (7) references to days are to calendar days unless stated as Business Days; (8) Business Day means a day on which banks are open for business in Dublin, Ireland and London, England; (9) any obligation on a party not to do something includes an obligation not to allow it to be done; (10) the words include and including are without limitation.

The Schedules form part of this Agreement and shall have the same force and effect as if set out in the body of this Agreement. In the event of conflict between the body and a Schedule, the body shall prevail unless the Schedule expressly states otherwise.

This Agreement has been negotiated at arm's length. Each party acknowledges that it has had the opportunity to obtain independent legal advice and that the doctrine of contra proferentem shall not apply in the construction or interpretation of this Agreement.

3. Share Capital; Classes

The authorised share capital comprises Ordinary Shares, Series A Preferred Shares and Series B Preferred Shares with the rights set out in the Constitution and this Agreement.

Series B Preferred Shares carry a 1x non-participating liquidation preference, anti-dilution protection on a broad-based weighted average basis, and conversion rights into Ordinary Shares on a 1:1 basis subject to adjustments.

A summary cap table as at Completion is set out in Schedule 1.

4. Board Composition; Reserved Matters

The Board shall comprise up to seven (7) directors: (1) two (2) Founder directors appointed by the Founders; (2) two (2) Investor directors appointed by the Investor Majority; (3) up to three (3) independent directors appointed by mutual agreement.

Board meetings require quorum of three directors including at least one Investor director. Board materials shall be circulated at least five Business Days before meetings except in emergencies.

The following Reserved Matters require Investor Majority consent: amendment of constitutional documents adversely affecting Investor Shares; declaration of dividends; incurrence of indebtedness above €500,000; approval of annual budget variances greater than 15%; appointment/removal of CEO or CFO; any material litigation settlement above €250,000; any sale of all or substantially all assets; any IPO or trade sale process.

5. Transfer Restrictions; Pre-emption

No Shareholder may Transfer shares except as permitted under this Agreement. Permitted Transfers include transfers to Affiliates subject to undertaking to be bound by this Agreement.

A Shareholder wishing to Transfer must first offer shares to existing Shareholders pro rata at Fair Market Value (right of first refusal), with 30 days to accept.

Transfers not complying with this clause are void and shall not be registered.

6. Drag-Along; Tag-Along

If holders of 75% of all shares approve a bona fide sale to a third party, they may deliver a Drag-Along Notice requiring all Shareholders to sell on the same terms, subject to customary limitations for dissenting founders regarding representations.

If founders propose a sale of more than 50% of their shares, other Shareholders may deliver a Tag-Along Notice to participate pro rata.

7. Information Rights; Inspection

Investors shall receive quarterly management accounts within 30 days of quarter end, annual audited accounts within 120 days, annual budget, cap table updates, and material litigation notices.

Investors may inspect books and records on reasonable notice during business hours with confidentiality obligations.